

Usman Husain v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 2 February 2026 · WRIT - C No. 12449 of 2025 · **Petition disposed of; Executive Engineer to verify premises and decide in accordance with law.**

HEADNOTE

Where a new connection is withheld under paragraph 4.3 of the U.P. Electricity Supply Code, 2005 on alleged premises dues, and the applicant contends that the buildings are different, the High Court will not decide identity of the premises on writ. The applicant may place those facts before the Executive Engineer, who shall re-verify and decide as required in law.

FACTUAL SUMMARY

The petitioner, Usman Husain, sought a writ of mandamus directing U.P. Power Corporation Ltd. to grant a 5 kW commercial electricity connection at Plot/Gata No. 1036, Village Jindaur, Rahimbad, Hardoi Road, Malihabad, Lucknow, on Application No. J4059157101. The Corporation opposed the petition, producing a final assessment order and contending that outstanding dues on the premises barred a fresh connection under paragraph 4.3 of the U.P. Electricity Supply Code, 2005. The petitioner asserted that the buildings were different.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection withheld for alleged premises dues

HOLDING

Where the licensee withholds a new connection under paragraph 4.3 on alleged premises dues and the applicant asserts that the buildings are different, the writ court will not adjudicate identity of the premises; the applicant may apprise the Executive Engineer, who shall re-verify the facts and take such decision as may be required in law. ¶ 3-5

FLAG Order cites 'Paragraph no. 4.3' without a sub-clause.

PRINCIPLE TAGS

arrears-run-with-the-premises Where a new connection is withheld under paragraph 4.3 of the U.P. Electricity Supply Code, 2005 on alleged premises dues, and the applicant contends that the buildings are different, the High Court will not decide identity of the premises on writ.. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARAGRAPH 4.3 OF THE SUPPLY CODE BARS THE FRESH CONNECTION ON THESE FACTS.

NOT DECIDED — WHETHER THE BUILDINGS/PREMISES FOR WHICH CONNECTION IS SOUGHT ARE THE SAME AS THOSE CARRYING THE ASSESSED DUES.

NOT DECIDED — WHETHER THE FINAL ASSESSMENT ORDER ATTACHES TO THE PETITIONER'S PREMISES.

